



Prevention of Terrorism (Temporary Provisions) Act 1984

1984 CHAPTER 8

An Act to repeal and re-enact with amendments the provisions of the Prevention of Terrorism (Temporary Provisions) Act 1976. [22nd March 1984]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PROSCRIBED ORGANISATIONS

1.—(1) Subject to subsection (7) below, if any person—

Proscribed
organisations.

- (a) belongs or professes to belong to a proscribed organisation ;
- (b) solicits or invites financial or other support for a proscribed organisation, or knowingly makes or receives any contribution in money or otherwise to the resources of a proscribed organisation ; or
- (c) arranges or assists in the arrangement or management of, or addresses, any meeting of three or more persons (whether or not it is a meeting to which the public are admitted) knowing that the meeting—
 - (i) is to support a proscribed organisation ;
 - (ii) is to further the activities of such an organisation ; or

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(iii) is to be addressed by a person belonging or professing to belong to such an organisation, he shall be guilty of an offence.

(2) A person guilty of an offence under subsection (1) above shall be liable—

(a) on summary conviction to imprisonment for a term not exceeding six months, or to a fine not exceeding the statutory maximum, or both ; or

(b) on conviction on indictment to imprisonment for a term not exceeding five years, or to a fine, or both.

(3) Any organisation for the time being specified in Schedule 1 to this Act is a proscribed organisation for the purposes of this Act ; and any organisation which passes under a name mentioned in that Schedule shall be treated as proscribed, whatever relationship (if any) it has to any other organisation of the same name.

(4) The Secretary of State may by order made by statutory instrument add to Schedule 1 to this Act any organisation that appears to him to be concerned in terrorism occurring in the United Kingdom and connected with Northern Irish affairs, or in promoting or encouraging it.

(5) The Secretary of State may also by order so made remove an organisation from Schedule 1 to this Act.

(6) In this section and section 2 below “organisation” includes any association or combination of persons.

(7) A person belonging to a proscribed organisation shall not be guilty of an offence under this section by reason of belonging to the organisation if he shows—

(a) that he became a member when it was not a proscribed organisation under the current legislation ; and

(b) that he has not since he became a member taken part in any of its activities at any time while it was a proscribed organisation under that legislation.

(8) In subsection (7) above “the current legislation”, in relation to any time, means whichever of the following was in force at that time—

1974 c. 56. (a) the Prevention of Terrorism (Temporary Provisions) Act 1974 ;

1976 c. 8. (b) the Prevention of Terrorism (Temporary Provisions) Act 1976 ;

(c) this Act.

(9) The reference in subsection (7) above to a person becoming a member of an organisation is a reference to the only or last occasion on which he became a member.

(10) The court by or before which a person is convicted of an offence under this section may order the forfeiture of any money or other property which, at the time of the offence, he had in his possession or under his control for the use or benefit of the proscribed organisation.

PART I

2.—(1) Any person who in a public place—

(a) wears any item of dress ; or

(b) wears, carries or displays any article,

in such a way or in such circumstances as to arouse reasonable apprehension that he is a member or supporter of a proscribed organisation, shall be guilty of an offence, and shall be liable on summary conviction—

Display of support in public for a proscribed organisation.

(i) to imprisonment for a term not exceeding six months; or

(ii) to a fine of an amount not exceeding level 5 on the standard scale,

or to both.

(2) A constable may arrest without warrant anyone whom he has reasonable grounds to suspect of being a person guilty of an offence under this section.

(3) In this section “ public place ” includes any highway and any other premises or place to which at the material time the public have, or are permitted to have, access, whether on payment or otherwise.

PART II

EXCLUSION ORDERS

3.—(1) The Secretary of State may exercise the powers conferred on him by this Part of this Act in such way as appears to him expedient to prevent acts of terrorism to which this Part of this Act applies.

Exclusion orders: general.

(2) An order under section 4, 5 or 6 below is referred to in this Act as an “ exclusion order.”

(3) An exclusion order may be revoked at any time by a further order made by the Secretary of State.

(4) An exclusion order shall, unless revoked earlier, expire at the end of the period of three years beginning with the day on which it is made.

(5) The fact that an exclusion order against a person has been revoked or has expired shall not prevent the making of a further exclusion order against him.

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(6) The acts of terrorism to which this Part of this Act applies are acts of terrorism designed to influence public opinion or Government policy with respect to affairs in Northern Ireland.

Orders
excluding
persons from
Great Britain.

4.—(1) If the Secretary of State is satisfied that any person—

- (a) is or has been concerned in the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies ; or
- (b) is attempting or may attempt to enter Great Britain with a view to being concerned in the commission, preparation or instigation of such acts of terrorism,

the Secretary of State may make an exclusion order against him.

(2) An exclusion order under this section is an order prohibiting a person from being in, or entering, Great Britain.

(3) In deciding whether to make an exclusion order under this section against a person who is ordinarily resident in Great Britain, the Secretary of State shall have regard to the question whether that person's connection with any country or territory outside Great Britain is such as to make it appropriate that such an order should be made.

(4) An exclusion order shall not be made under this section against a person who is a British citizen and who—

- (a) is at the time ordinarily resident in Great Britain, and has then been ordinarily resident in Great Britain throughout the last three years ; or
- (b) is at the time subject to an order under section 5 below.

(5) Subsection (4)(a) above shall be construed in accordance with Schedule 2 to this Act.

Orders
excluding
persons from
Northern
Ireland.

5.—(1) If the Secretary of State is satisfied that any person—

- (a) is or has been concerned in the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies ; or
- (b) is attempting or may attempt to enter Northern Ireland with a view to being concerned in the commission, preparation or instigation of such acts of terrorism,

the Secretary of State may make an exclusion order against him.

(2) An exclusion order under this section is an order prohibiting a person from being in, or entering, Northern Ireland.

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(3) In deciding whether to make an exclusion order under this section against a person who is ordinarily resident in Northern Ireland, the Secretary of State shall have regard to the question whether that person's connection with any country or territory outside Northern Ireland is such as to make it appropriate that such an order should be made.

(4) An exclusion order shall not be made under this section against a person who is a British citizen and who—

(a) is at the time ordinarily resident in Northern Ireland, and has then been ordinarily resident in Northern Ireland throughout the last three years ; or

(b) is at the time subject to an order under section 4 above.

(5) Subsection (4)(a) above shall be construed in accordance with Schedule 2 to this Act.

6.—(1) If the Secretary of State is satisfied that any person—

(a) is or has been concerned in the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies ; or

(b) is attempting or may attempt to enter Great Britain or Northern Ireland with a view to being concerned in the commission, preparation or instigation of such acts of terrorism,

Orders
excluding
persons from
the United
Kingdom.

the Secretary of State may make an exclusion order against him.

(2) An exclusion order under this section is an order prohibiting a person from being in, or entering, the United Kingdom.

(3) In deciding whether to make an exclusion order under this section against a person who is ordinarily resident in the United Kingdom, the Secretary of State shall have regard to the question whether that person's connection with any country or territory outside the United Kingdom is such as to make it appropriate that such an order should be made.

(4) An exclusion order shall not be made under this section against a person who is a British citizen.

7.—(1) As soon as may be after the making of an exclusion order, notice of the making of the order shall be served on the person against whom it has been made ; and the notice—

Right to make
representa-
tions to
Secretary of
State etc.

(a) shall set out the rights afforded to him by this section ; and

(b) shall specify the manner in which those rights are to be exercised.

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(2) Subsection (1) above shall not impose an obligation to take any steps to serve a notice on a person at a time when he is outside the United Kingdom.

(3) After service of the notice, if the person against whom the exclusion order has been made objects to the order—

(a) he may make representations in writing to the Secretary of State setting out the grounds of his objections ; and

(b) he may include in those representations a request for a personal interview with the person or persons nominated by the Secretary of State under subsection (6) below.

(4) Subject to subsection (5) below, a person against whom an exclusion order has been made must exercise the rights conferred by subsection (3) above within seven days of the service of the notice.

(5) Where before the expiry of that period—

(a) he has consented to his removal under section 8 below from Great Britain, Northern Ireland or the United Kingdom, as the case may be ; and

(b) he has been removed accordingly,

he may exercise the rights conferred by subsection (3) above within fourteen days of his removal.

(6) If he exercises them within the period within which they are required to be exercised, the matter shall be referred for the advice of one or more persons nominated by the Secretary of State.

(7) Where subsection (4) above applies, the person against whom the exclusion order has been made shall be granted a personal interview with the person or persons so nominated.

(8) Where subsection (5) above applies, the person against whom the exclusion order has been made shall be granted a personal interview with the person or persons so nominated if it appears to the Secretary of State that it is reasonably practicable to grant him such an interview in an appropriate country or territory within a reasonable period from the date on which he made his representations.

(9) In subsection (8) above “an appropriate country or territory” means—

(a) Northern Ireland or the Republic of Ireland, if the exclusion order was made under section 4 above ;

(b) Great Britain or the Republic of Ireland, if it was made under section 5 above ;

(c) the Republic of Ireland, if it was made under section 6 above.

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(10) Where it appears to the Secretary of State that it is reasonably practicable to grant a personal interview in more than one appropriate country or territory, he may grant the interview in whichever of them he thinks fit.

(11) The Secretary of State shall reconsider the matter as soon as is reasonably practicable after he has received representations relating to it under this section and any report of an interview relating to it which is granted under this section.

(12) In reconsidering a matter under subsection (11) above, the Secretary of State shall take into account everything which appears to him to be relevant and in particular—

- (a) the representations relating to the matter made to him under this section ;
- (b) the advice of the person or persons to whom the matter was referred by him under this section ; and
- (c) the report of any interview relating to the matter granted under this section.

(13) The Secretary of State shall thereafter, if it is reasonably practicable to do so, give notice in writing to the person against whom the exclusion order has been made of any decision which he takes as to whether or not to revoke the order.

8. Where—

Powers of
removal.

- (a) an exclusion order has been made against a person ;
and
- (b) notice of the making of the order has been served upon him,

the Secretary of State may have him removed from Great Britain, Northern Ireland or the United Kingdom, as the case may be—

- (i) if he consents ;
- (ii) if the period mentioned in subsection (4) of section 7 above has expired and he has not made representations relating to the matter in accordance with that section ; or
- (iii) if he has made such representations but the Secretary of State has notified him that he has decided not to revoke the order.

9.—(1) If any person who is subject to an exclusion order fails to comply with the order at a time after he has been, or has become liable to be, removed under section 8 above, he shall be guilty of an offence.

Offences under
Part II.

(2) If any person—

- (a) is knowingly concerned in arrangements for securing or facilitating the entry into Great Britain, Northern

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Ireland or the United Kingdom of a person whom he knows, or has reasonable grounds for believing, to be an excluded person ; or

(b) in Great Britain, Northern Ireland or the United Kingdom knowingly harbours such a person,
he shall be guilty of an offence.

(3) In subsection (2) above " excluded person " means—

(a) in relation to Great Britain, a person subject to an exclusion order made under section 4 above who has been, or has become liable to be, removed from Great Britain under section 8 above ;

(b) in relation to Northern Ireland, a person subject to an exclusion order made under section 5 above who has been, or has become liable to be, removed from Northern Ireland under section 8 above ; and

(c) in relation to the United Kingdom, a person subject to an exclusion order made under section 6 above who has been, or has become liable to be, removed from the United Kingdom under section 8 above.

(4) A person guilty of an offence under this section shall be liable—

(a) on summary conviction to imprisonment for a term not exceeding six months, or to a fine not exceeding the statutory maximum, or both ; or

(b) on conviction on indictment to imprisonment for a term not exceeding five years, or to a fine, or both.

PART III

MISCELLANEOUS OFFENCES

Contributions
towards acts
of terrorism.

10.—(1) If any person—

(a) solicits or invites any other person to give, lend or otherwise make available, whether for consideration or not, any money or other property ; or

(b) receives or accepts from any other person, whether for consideration or not, any money or other property,

intending that it shall be applied or used for or in connection with the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies, he shall be guilty of an offence.

(2) If any person gives, lends or otherwise makes available to any other person, whether for consideration or not, any money or other property, knowing or suspecting that it will or may be applied or used for or in connection with the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies, he shall be guilty of an offence.

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(3) A person guilty of an offence under subsection (1) or (2) above shall be liable—

- (a) on summary conviction to imprisonment for a term not exceeding six months, or to a fine not exceeding the statutory maximum, or both ; or
- (b) on conviction on indictment to imprisonment for a term not exceeding five years, or to a fine, or both.

(4) The court by or before which a person is convicted of an offence under subsection (1) above may order the forfeiture of any money or other property—

- (a) which, at the time of the offence, he had in his possession or under his control ; and
- (b) which, at that time, he intended should be applied or used for or in connection with the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies.

(5) The acts of terrorism to which this Part of this Act applies are acts of terrorism connected with Northern Irish affairs.

(6) In this section “ property ” includes—

- (a) in England and Wales and Northern Ireland, both real and personal property ; and
- (b) in Scotland, both heritable and moveable property.

11.—(1) If a person who has information which he knows or believes might be of material assistance—

Information
about acts of
terrorism.

- (a) in preventing the commission by any other person of an act of terrorism to which this Part of this Act applies ;
or
- (b) in securing the apprehension, prosecution or conviction of any other person for an offence involving the commission, preparation or instigation of an act of terrorism to which this Part of this Act applies,

fails without reasonable excuse to disclose that information as soon as reasonably practicable—

- (i) in England and Wales, to a constable ;
- (ii) in Scotland, to a constable or the procurator fiscal ; or
- (iii) in Northern Ireland, to a constable or a member of Her Majesty's forces,

he shall be guilty of an offence.

(2) A person guilty of an offence under subsection (1) above shall be liable—

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- (a) on summary conviction to imprisonment for a term not exceeding six months, or to a fine not exceeding the statutory maximum, or both ;
- (b) on conviction on indictment to imprisonment for a term not exceeding five years, or to a fine, or both.

(3) Proceedings for an offence under this section may be taken, and the offence may for the purpose of those proceedings be treated as having been committed, in any place where the person to be charged is or has at any time been since he first knew or believed that the information might be of material assistance as mentioned in subsection (1) above.

PART IV

ARREST, DETENTION AND PORT POWERS

Powers of
arrest and
detention.

12.—(1) Subject to subsection (2) below, a constable may arrest without warrant a person whom he has reasonable grounds for suspecting to be—

- (a) a person guilty of an offence under section 1, 9 or 10 above ;
- (b) a person who is or has been concerned in the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies ;
- (c) a person subject to an exclusion order.

(2) The power of arrest conferred by subsection (1)(c) above is exercisable only—

- (a) in Great Britain, if the exclusion order was made under section 4 above ; and
- (b) in Northern Ireland, if it was made under section 5 above.

(3) The acts of terrorism to which this Part of this Act applies are—

- (a) acts of terrorism connected with the affairs of Northern Ireland ; and
- (b) acts of terrorism of any other description except acts connected solely with the affairs of the United Kingdom or any part of the United Kingdom other than Northern Ireland.

(4) A person arrested under this section shall not be detained in right of the arrest for more than forty-eight hours after his arrest ; but the Secretary of State may, in any particular case, extend the period of forty-eight hours by a period or periods specified by him.

(5) Any such further period or periods shall not exceed five days in all. PART IV

(6) The following provisions (requirement to bring accused person before the court after his arrest) shall not apply to a person detained in right of the arrest—

- (a) section 43 of the Magistrates' Courts Act 1980 ; 1980 c. 43.
- (b) section 29 of the Children and Young Persons Act 1969 c. 54. 1969 ;
- (c) section 321(3) of the Criminal Procedure (Scotland) Act 1975 c. 21. 1975 ;
- (d) Article 131 of the Magistrates' Courts (Northern Ireland) Order 1981 ; and S.I. 1981/
1675
(N.I. 26).
- (e) section 50(3) of the Children and Young Persons Act (Northern Ireland) 1968. 1968 c. 34.
(N.I.).

(7) Section 295(1) of the Criminal Procedure (Scotland) Act 1975 (interim liberation by officer in charge of police station) shall not apply to a person detained in right of an arrest under this section.

(8) The provisions of this section are without prejudice to any power of arrest exercisable apart from this section.

13.—(1) The Secretary of State may by order made by statutory instrument provide for— Control of
entry and
procedure for
removal.

(a) the examination of persons arriving in, or leaving, Great Britain or Northern Ireland, with a view to determining—

(i) whether any such person appears to be a person who is or has been concerned in the commission, preparation or instigation of acts of terrorism to which this Part of this Act applies ;

(ii) whether any such person is subject to an exclusion order ; or

(iii) whether there are grounds for suspecting that any such person has committed an offence under section 9 above ;

(b) the arrest and detention of persons subject to exclusion orders, pending their removal pursuant to section 8 above ; and

(c) arrangements for the removal of persons pursuant to that section.

(2) An order under this section may confer powers on the examining officers specified in paragraph 1(2) of Schedule 3 to this Act including—

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- (a) the power of arresting and detaining any person pending—
 - (i) his examination ;
 - (ii) a decision by the Secretary of State whether or not to make an exclusion order against him ;
 - or
 - (iii) his removal pursuant to section 8 above ;
- (b) the power of searching persons, of boarding ships or aircraft, of searching in ships or aircraft or elsewhere and of detaining articles—
 - (i) for use in connection with the taking of a decision by the Secretary of State as to whether or not to make an exclusion order ; or
 - (ii) for use as evidence in criminal proceedings.

PART V

GENERAL

Supple-
mentary.

14.—(1) In this Act, unless the context otherwise requires—

- “ aircraft ” includes hovercraft ;
- “ captain ” means master (of a ship) or commander (of an aircraft) ;
- “ exclusion order ” has the meaning given by section 3(2) above ;
- “ port ” includes airport and hoverport ;
- “ ship ” includes every description of vessel used in navigation ;
- “ terrorism ” means the use of violence for political ends, and includes any use of violence for the purpose of putting the public or any section of the public in fear.

1982 c. 48.

(2) In this Act “ statutory maximum ” has the meaning given by section 74 of the Criminal Justice Act 1982 and for the purposes of this Act—

1980 c. 43.

- (a) section 32 of the Magistrates’ Courts Act 1980 ; and
- (b) an order made under section 143 of that Act which alters the sum specified in the definition of “ the prescribed sum ” in subsection (9) of the said section 32, shall extend to Northern Ireland and subsection (1) of the said section 74 shall have effect as if after the words “ England and Wales ” there were inserted the words “ or Northern Ireland ”.

(3) In this Act “ the standard scale ” has the meaning given by section 75 of the Criminal Justice Act 1982 and for the purposes of this Act—

- (a) section 37 of that Act ; and

- (b) an order under section 143 of the Magistrates' Courts Act 1980 which alters the sums specified in subsection (2) of the said section 37, PART V
1980 c. 43.

shall extend to Northern Ireland and the said section 75 shall have effect as if after the words "England and Wales" there were inserted the words "or Northern Ireland".

(4) The powers conferred by Part II of this Act and section 13 above shall be exercisable notwithstanding the rights conferred by section 1 of the Immigration Act 1971 (general principles regulating entry into and staying in the United Kingdom). 1971 c. 77.

(5) Any reference in a provision of this Act to a person's having been concerned in the commission, preparation or instigation of acts of terrorism shall be taken to be a reference to his having been so concerned at any time, whether before or after the passing of this Act.

(6) When any question arises under this Act whether or not a person is exempted from the provisions of section 4, 5 or 6 above, it shall lie on the person asserting it to prove that he is.

(7) The provisions of Schedule 3 to this Act shall have effect for supplementing sections 1 to 13 above.

(8) An order made under section 13 above varying or revoking a previous order so made may contain such transitional provisions and savings as appear to the Secretary of State to be necessary or expedient.

(9) An order made under section 13 above shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(10) No order under section 1 above or section 17 below shall be made unless—

- (a) a draft of the order has been approved by resolution of each House of Parliament; or
- (b) it is declared in the order that it appears to the Secretary of State that by reason of urgency it is necessary to make the order without a draft having been so approved.

(11) Every order under section 1 above or section 17 below (except such an order of which a draft has been so approved)—

- (a) shall be laid before Parliament; and
- (b) shall cease to have effect at the end of a period of forty days beginning with the date on which it was made unless, before the end of that period, the order has

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been approved by resolution of each House of Parliament, but without prejudice to anything previously done or to the making of a new order.

(12) In reckoning for the purposes of subsection (11) above any period of forty days, no account shall be taken of any period during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

Financial
provisions.

15. Any expenses incurred by the Secretary of State under, or by virtue of, this Act shall be paid out of money provided by Parliament.

Power to
extend to
Channel
Islands and
Isle of Man.

16. Her Majesty may by Order in Council direct that any of the provisions of this Act shall extend, with such exceptions, adaptations and modifications, if any, as may be specified in the Order, to any of the Channel Islands and the Isle of Man.

Duration,
expiry and
revival of
certain
provisions.

17.—(1) The following provisions of this Act—

sections 1 to 13 ;

section 14 except in so far as it relates to orders under subsection (2)(a) or (b) below ;

subsection (2)(c) below ; and

the Schedules,

shall remain in force until the end of the period of twelve months beginning with the passing of this Act and shall then expire unless continued in force by an order under subsection (2)(a) below.

(2) The Secretary of State may by order made by statutory instrument provide—

(a) that all or any of the said provisions which are for the time being in force (including any in force by virtue of an order under this paragraph or paragraph (c) below) shall continue in force for a period not exceeding twelve months from the coming into operation of the order ;

(b) that all or any of the said provisions which are for the time being in force shall cease to be in force ; or

(c) that all or any of the said provisions which are not for the time being in force shall come into force again and remain in force for a period not exceeding twelve months from the coming into operation of the order.

(3) This Act shall cease to have effect at the end of the period of five years beginning with the date on which it is passed.

Repeal of Act
of 1976 etc.
1976 c. 8.

18.—(1) The Prevention of Terrorism (Temporary Provisions) Act 1976 (in this section referred to as “the Act of 1976”) is hereby repealed.

PART V

(2) Any exclusion order made or deemed to have been made against a person under Part II of the Act of 1976 and in force on the date on which this Act is passed shall, unless it is revoked earlier, expire at the end of a period of three years beginning with that date, but the Secretary of State may make an exclusion order against him under Part II of this Act.

(3) The repeal of the Act of 1976 shall not affect the operation of any Order in Council extending it to any of the Channel Islands or the Isle of Man ; but any such Order may be revoked by an Order in Council under section 16 above as if made under that section.

(4) The Prevention of Terrorism (Temporary Provisions) Act 1976 (Amendment) Order 1979 is hereby revoked. S.I. 1979/745.

19.—(1) This Act may be cited as the Prevention of Terrorism (Temporary Provisions) Act 1984. Short title and extent.

(2) Part I of this Act shall not extend to Northern Ireland.

SCHEDULES

Section 1.

SCHEDULE 1

PROSCRIBED ORGANISATIONS

Irish Republican Army
Irish National Liberation Army

Sections 4 and 5.

SCHEDULE 2

EXCLUSION ORDERS: CALCULATION OF PERIOD OF RESIDENCE

1.—(1) It is hereby declared that a person is not to be treated—

- (a) as ordinarily resident in Great Britain for the purpose of the exemption in section 4(4)(a) of this Act ; or
- (b) as ordinarily resident in Northern Ireland for the purpose of the exemption in section 5(4)(a) of this Act,

at a time when he is there in breach of—

- (i) an exclusion order ;
- (ii) the Immigration Act 1971 ; or
- (iii) any law for purposes similar to that Act in force in the United Kingdom after the passing of this Act.

1971 c. 77.

(2) In each of those exemptions “the last three years” is to be taken as a period amounting in total to three years exclusive of any time during which the person claiming exemption was undergoing imprisonment or detention for a period of six months or more by virtue of a sentence passed for an offence on a conviction in the United Kingdom and Islands.

2. In this Schedule—

- (a) “exclusion order” means an order under section 4, 5 or 6 of this Act or the corresponding provisions of the Prevention of Terrorism (Temporary Provisions) Act 1974 or the Prevention of Terrorism (Temporary Provisions) Act 1976 ;
- (b) “sentence” includes any order made on conviction of an offence ;
- (c) two or more sentences for consecutive (or partly consecutive) terms shall be treated as a single sentence ;
- (d) a person shall be deemed to be detained by virtue of a sentence—
 - (i) at any time when he is liable to imprisonment or detention by virtue of the sentence, but is unlawfully at large ; and
 - (ii) during any period of custody by which under any relevant enactment the term to be served under the sentence is reduced ;
- (e) “Islands” means the Channel Islands and the Isle of Man.

1974 c. 56.
1976 c. 8.

3. In paragraph 2(d)(ii) above "relevant enactment" means section 67 of the Criminal Justice Act 1967 (or, before that section operated, section 17(2) of the Criminal Justice Administration Act 1962) and any similar enactment which is for the time being or has (before or after the passing of this Act) been in force in any part of the United Kingdom or Islands. SCH. 2
1967 c. 80.
1962 c. 15.

SCHEDULE 3

Section 14.

SUPPLEMENTAL PROVISIONS FOR SECTIONS 1 TO 13

PART I

ORDERS UNDER SECTION 13

1.—(1) In this Part of this Schedule references to an order are to an order made under section 13 of this Act.

(2) The following shall be examining officers—

(a) constables ;

(b) immigration officers appointed for the purposes of the Immigration Act 1971 under paragraph 1 of Schedule 2 to that Act ; and 1971 c. 77.

(c) officers of customs and excise who are the subject of arrangements for their employment as immigration officers, made under that paragraph by the Secretary of State.

(3) In Scotland persons employed by a police authority for the assistance of constables under section 9 of the Police (Scotland) Act 1967 may perform such functions conferred on examining officers as are specified in an order. 1967 c. 77.

(4) In Northern Ireland members of Her Majesty's forces may perform such functions conferred on examining officers as are specified in an order.

(5) Where, by virtue of section 13(2)(b) of this Act, an order confers powers of search and of detaining articles on an examining officer, the order may also confer power on the examining officer to authorise any other person to exercise, on his behalf, any of the powers conferred by virtue of that paragraph.

(6) An order may—

(a) in the case of ships and aircraft—

(i) coming to Great Britain from the Republic of Ireland, Northern Ireland, the Channel Islands or the Isle of Man ; or

(ii) going from Great Britain to any other of those places,

restrict the ports, areas or places in Great Britain which they may use ;

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(b) in the case of ships and aircraft—

(i) coming to Northern Ireland from the Republic of Ireland, Great Britain, the Channel Islands or the Isle of Man ; or

(ii) going from Northern Ireland to any other of those places,

restrict the ports, areas or places in Northern Ireland which they may use ; and

(c) provide for the supply and use of—

(i) landing cards by passengers disembarking in Great Britain or Northern Ireland from ships or aircraft ; and

(ii) embarkation cards by passengers boarding ships or aircraft about to leave either of those places.

(7) The persons on whom duties may be imposed by an order shall include persons arriving in, or leaving, Great Britain or Northern Ireland, whether as passengers or otherwise, and captains, owners or agents of ships or aircraft.

(8) Without prejudice to the generality of section 13 of this Act or of the preceding provisions of this paragraph, an order may contain such supplemental or incidental provisions as appear to the Secretary of State to be expedient, and may contain provisions comparable to those contained in or made under the following administrative provisions of the Immigration Act 1971, that is to say, section 33(3) (designation of ports of entry and exit) and the following paragraphs of Schedule 2 :—

Paragraph

4	...	...	Duties of persons being examined, and powers to search them and their belongings.
5	...	...	Orders about landing and embarkation cards.
8, 10 and 11	...	...	Arrangements for the removal of persons.
16, 17 and 18(3)	...	...	Detention of persons liable to examination or removal.
26 and 27	...	...	Supplemental duties of those connected with ships or aircraft or with ports.

(9) A person who knowingly contravenes or fails to comply with an order shall be guilty of an offence, and shall be liable on summary conviction—

(a) to imprisonment for a term not exceeding three months ; or

(b) to a fine of an amount not exceeding level 4 on the standard scale,

or to both.

(10) Examining officers shall exercise their functions under this Act in accordance with such instructions as may from time to time be given them by the Secretary of State.

2. An order may make such provision as appears to the Secretary of State expedient as respects persons who enter or leave Northern Ireland by land, or who seek to do so.

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PART II

OFFENCES, DETENTION ETC.

Prosecution of offences

3. Proceedings shall not be instituted—

- (a) in England and Wales for an offence under section 1, 2, 9, 10 or 11 of this Act, except by, or with the consent of, the Attorney General; or
- (b) in Northern Ireland for an offence under section 9, 10 or 11 of this Act, except by, or with the consent of, the Attorney General for Northern Ireland.

Search warrants

4.—(1) If a justice of the peace is satisfied that there is reasonable ground for suspecting that—

- (a) evidence of the commission of an offence under section 1, 9 or 10 of this Act; or
- (b) evidence sufficient to justify the making of an order under section 1 of this Act or an exclusion order,

is to be found at any premises or place, he may grant a search warrant authorising entry to the premises or place.

(2) An application for a warrant under sub-paragraph (1) above shall be made by a member of a police force of a rank not lower than inspector, and he shall give his information to the justice on oath.

(3) The warrant shall authorise the applicant, and any other member of any police force, to enter the premises or place, if necessary by force, and to search the premises or place and every person found therein and to seize anything found on the premises or place, or on any such person, which any member of a police force acting under the warrant has reasonable grounds for suspecting to be evidence falling within sub-paragraph (1) above.

(4) If a member of a police force of a rank not lower than superintendent has reasonable grounds for believing that the case is one of great emergency and that in the interests of the State immediate action is necessary, he may by a written order signed by him give to any member of a police force the authority which may be given by a search warrant under this paragraph.

(5) Where an authority is given under sub-paragraph (4) above, particulars of the case shall be notified as soon as may be to the Secretary of State.

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(6) A search of a person under this paragraph may only be carried out—

- (a) by a person of the same sex as the person searched ; or
- (b) by a medical practitioner.

(7) In the application of this paragraph to Scotland, for any reference to a justice of the peace there shall be substituted a reference to a sheriff or a magistrate or justice of the peace ; and for any reference to information on oath there shall be substituted a reference to evidence on oath.

(8) In the application of this paragraph to Northern Ireland—

- (a) for any reference to a justice of the peace there shall be substituted a reference to a resident magistrate ;
- (b) references to a police force shall be substituted as follows—
 - (i) for the reference in sub-paragraph (2) and the first reference in sub-paragraph (4) there shall be substituted references to the Royal Ulster Constabulary ; and
 - (ii) for all other references there shall be substituted references to the Royal Ulster Constabulary, including the Royal Ulster Constabulary Reserve ; and
- (c) for any reference to information on oath there shall be substituted a reference to complaint on oath.

Detention : supplemental provisions

5.—(1) A person may be detained—

- (a) in right of an arrest under section 12 of this Act ; or
- (b) under any provision contained in or made under section 13 of this Act, or Part I of this Schedule,

in such place as the Secretary of State may from time to time direct (when not detained in accordance with an order under section 13 of this Act on board a ship or aircraft).

(2) A person shall be deemed to be in legal custody at any time when he is so detained.

(3) Where a person is so detained, any examining officer, constable or prison officer, or any other person authorised by the Secretary of State, may take all such steps as may be reasonably necessary for photographing, measuring or otherwise identifying him.

Powers of search without warrant

6.—(1) In any circumstances in which a constable has power under section 12 of this Act to arrest a person, he may also, for the purpose of ascertaining whether he has in his possession any document or other article which may constitute evidence that he is a person liable to arrest, stop that person, and search him.

(2) Where a constable has arrested a person under that section, for any reason other than for the commission of a criminal offence,

he, or any other constable, may search him for the purpose of ascertaining whether he has in his possession any document or other article which may constitute evidence that he is a person liable to arrest.

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(3) A search under this paragraph may only be carried out—

- (a) by a person of the same sex as the person searched ; or
- (b) by a medical practitioner.

Evidence in proceedings

7.—(1) Any document purporting to be an order, notice or direction made or given by the Secretary of State for the purposes of any provision contained in or made under this Act and to be signed by him or on his behalf shall be received in evidence, and shall, until the contrary is proved, be deemed to be made or given by him.

(2) Prima facie evidence of any such order, notice or direction may, in any legal proceedings, be given by the production of a document bearing a certificate purporting to be signed by or on behalf of the Secretary of State and stating that the document is a true copy of the order, notice or direction.

Consequential amendment of Northern Ireland (Emergency Provisions) Act 1978

1978 c. 5.

8. In paragraph 16 of Schedule 4 to the Northern Ireland (Emergency Provisions) Act 1978 for the words "Prevention of Terrorism 1976 c. 8. (Temporary Provisions) Act 1976" there shall be substituted the words "Prevention of Terrorism (Temporary Provisions) Act 1984".